

Aadil v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 October 2023 · 2023:AHC:208144-DB · Writ-C No. 32960 of 2023 · **Writ disposed; Clause 6.5 application to be decided; coercive action stayed.**

HEADNOTE

Writ against a notice dated 4 August 2023 demanding Rs.2,71,153 for actual consumption was disposed of without examining the bill. An application to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, if filed within one month of the certified copy, is to be decided within one month. No coercive action for two months or until that decision, whichever is earlier.

FACTUAL SUMMARY

Aadil filed Writ-C No. 32960 of 2023 before the Allahabad High Court against a notice dated 4 August 2023. By that notice the Electricity Department demanded Rs.2,71,153 towards actual consumption. He disputed the bill. Counsel for the Department submitted that a person aggrieved by a bill for actual consumption could apply to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The State of Uttar Pradesh and four others were arrayed as respondents.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed actual-consumption bill relegated to the Executive Engineer

HOLDING

Without examining the merits of the notice dated 4 August 2023 demanding Rs.2,71,153 for actual consumption, the Court directed that an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, filed within one month of presentation of the certified copy, be considered and decided by the Executive Engineer within one month thereafter. No coercive action shall be taken for two months or until that decision, whichever is earlier. The writ was disposed of on that basis. ¶ 3-6

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench treated an application to the Executive Engineer under Clause 6.5 as the efficacious alternative to a writ against a disputed actual-consumption bill and notice, and disposed of the petition without entering the merits. ¶ 3-4

para-6.5-objection-before-coercive-recovery Pending the Clause 6.5 application, or for two months, whichever is earlier, the Department was restrained from taking coercive action on the notice dated 4 August 2023. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS.2,71,153 TOWARDS ACTUAL CONSUMPTION, AND THE NOTICE DATED 4 AUGUST 2023, ARE CORRECT.

The Court declined to go into the merits and left the dispute to a Clause 6.5 application, if filed within one month of the certified copy. ¶ 4